

group, is the most direct, constructive aid that can be given them to improve their immediate situation.’” *Ibid.* In a report titled “Birth Control and the Negro,” Sanger and her coauthors identified blacks as “‘the great problem of the South’”—“the group with ‘the greatest economic, health, and social problems’”—and developed a birth-control program geared toward this population. *Ibid.* She later emphasized that black ministers should be involved in the program, noting, “‘We do not want word to go out that we want to exterminate the Negro population, and the minister is the man who can straighten out that idea if it ever occurs to any of their more rebellious members.’” *Ibid.*

Defenders of Sanger point out that W. E. B. DuBois and other black leaders supported the Negro Project and argue that her writings should not be read to imply a racial bias. *Ibid.*; see Planned Parenthood, Opposition Claims About Margaret Sanger (2016), https://www.plannedparenthood.org/uploads/filer_public/37/fd/37fdc7b6-de5f-4d22-8c05-9568268e92d8/sanger_opposition_claims_fact_sheet_2016.pdf. But Sanger’s motives are immaterial to the point relevant here: that “Birth Control” has long been understood to “ope[n] the way to the eugenist.” Racial Betterment 12.

B

To be sure, Sanger distinguished between birth control and abortion. Woman and the New Race 128–129; see, *e. g.*, Sanger, Birth Control or Abortion? Birth Control Rev., Dec. 1918, pp. 3–4. For Sanger, “[t]he one means health and happiness—a stronger, better race,” while “[t]he other means disease, suffering, [and] death.” Woman and the New Race 129. Sanger argued that “nothing short of contraceptives can put an end to the horrors of abortion and infanticide,” *id.*, at 25, and she questioned whether “we want the precious, tender qualities of womanhood, so much needed for our racial development, to perish in [the] sordid, abnormal experiences” of abortions, *id.*, at 29. In short, unlike contracep-

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tives, Sanger regarded “the hundreds of thousands of abortions performed in America each year [as] a disgrace to civilization.” *Id.*, at 126.

Although Sanger was undoubtedly correct in recognizing a moral difference between birth control and abortion, the eugenic arguments that she made in support of birth control apply with even greater force to abortion. Others were well aware that abortion could be used as a “metho[d] of eugenics,” 6 H. Ellis, *Studies in the Psychology of Sex* 617 (1910), and they were enthusiastic about that possibility. Indeed, some eugenicists believed that abortion should be legal for the very *purpose* of promoting eugenics. See Harris, *Abortion in Soviet Russia: Has the Time Come To Legalize It Elsewhere?* 25 *Eugenics Rev.* 22 (1933) (“[W]e are being increasingly compelled to consider legalized abortion as well as birth control and sterilization as possible means of influencing the fitness and happiness and quality of the race”); *Aims and Objects of the Eugenics Society*, 26 *Eugenics Rev.* 135 (1934) (“The *Society* advocates the provision of legalized facilities for voluntarily terminating pregnancy in cases of persons for whom sterilization is regarded as appropriate”). Support for abortion can therefore be found throughout the literature on eugenics. *E. g.*, *Population Control: Dr. Binnie Dunlop’s Address to the Eugenics Society*, 25 *Eugenics Rev.* 251 (1934) (lamenting “the relatively high birth-rate of the poorest third of the population” and “the serious rate of racial deterioration which it implied,” and arguing that “this birth-rate . . . would fall rapidly if artificial abortion were made legal”); Williams, *The Legalization of Medical Abortion*, 56 *Eugenics Rev.* 24–25 (1964) (“I need hardly stress the eugenic argument for extending family planning”—including “voluntary sterilization” and “abortion”—to “all groups, not merely to those who are the most intelligent and socially responsible”).

Abortion advocates were sometimes candid about abortion’s eugenic possibilities. In 1959, for example, Gutt-

macher explicitly endorsed eugenic reasons for abortion. A. Guttmacher, *Babies by Choice or by Chance* 186–188. He explained that “the quality of the parents must be taken into account,” including “[f]eeble-mindedness,” and believed that “it should be permissible to abort any pregnancy . . . in which there is a strong probability of an abnormal or malformed infant.” *Id.*, at 198. He added that the question whether to allow abortion must be “separated from emotional, moral and religious concepts” and “must have as its focus normal, healthy infants born into homes peopled with parents who have healthy bodies and minds.” *Id.*, at 221. Similarly, legal scholar Glanville Williams wrote that he was open to the possibility of eugenic infanticide, at least in some situations, explaining that “an eugenic killing by a mother, exactly paralleled by the bitch that kills her mis-shapen puppies, cannot confidently be pronounced immoral.” G. Williams, *Sanctity of Life and the Criminal Law* 20 (1957). The Court cited Williams’ book for a different proposition in *Roe v. Wade*, 410 U. S. 113, 130, n. 9 (1973).

But public aversion to eugenics after World War II also led many to avoid explicit references to that term. The American Eugenics Society, for example, changed the name of its scholarly publication from “Eugenics Quarterly” to “Social Biology.” See D. Paul, *Controlling Human Heredity: 1865 to the Present*, p. 125 (1995). In explaining the name change, the journal’s editor stated that it had become evident that eugenic goals could be achieved “for reasons other than eugenics.” *Ibid.* For example, “[b]irth control and abortion are turning out to be great eugenic advances of our time. If they had been advanced for eugenic reasons it would have retarded or stopped their acceptance.” *Ibid.* But whether they used the term “eugenics” or not, abortion advocates echoed the arguments of early 20th-century eugenicists by describing abortion as a way to achieve “population control” and to improve the “quality” of the population. One journal declared that “abortion is the one mode of population limita-

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tion which has demonstrated the speedy impact which it can make upon a national problem.” Notes of the Quarter: The Personal and the Universal, 53 *Eugenics Rev.* 186 (1962). Planned Parenthood’s leaders echoed these themes. When exulting over “‘fantastic . . . progress’” in expanding abortion, for example, Guttmacher stated that “‘the realization of the population problem has been responsible’ for the change in attitudes. ‘We’re now concerned more with the quality of population than the quantity.’” Abortion Reforms Termed “Fantastic,” *Hartford Courant*, Mar. 21, 1970, p. 16.

Avoiding the word “eugenics” did not assuage everyone’s fears. Some black groups saw “‘family planning’ as a euphemism for race genocide” and believed that “black people [were] taking the brunt of the ‘planning’” under Planned Parenthood’s “ghetto approach” to distributing its services. Dempsey, Dr. Guttmacher Is the Evangelist of Birth Control, *N. Y. Times Magazine*, Feb. 9, 1969, p. 82. “The Pittsburgh branch of the National Association for the Advancement of Colored People,” for example, “criticized family planners as bent on trying to keep the Negro birth rate as low as possible.” Kaplan, Abortion and Sterilization Win Support of Planned Parenthood, *N. Y. Times*, Nov. 14, 1968, p. L50, col. 1.

C

Today, notwithstanding Sanger’s views on abortion, respondent Planned Parenthood promotes both birth control and abortion as “reproductive health services” that can be used for family planning. Brief in Opposition 1. And with today’s prenatal screening tests and other technologies, abortion can easily be used to eliminate children with unwanted characteristics. Indeed, the individualized nature of abortion gives it even more eugenic potential than birth control, which simply reduces the chance of conceiving *any* child. As petitioners and several *amicus curiae* briefs point out, moreover, abortion has proved to be a disturbingly effective tool for implementing the discriminatory preferences that

undergird eugenics. *E. g.*, Pet. for Cert. 22–26; Brief for State of Wisconsin et al. as *Amici Curiae* 19–25; Brief for Ethics and Religious Liberty Commission of the Southern Baptist Convention et al. as *Amici Curiae* 9–10.

In Iceland, the abortion rate for children diagnosed with Down syndrome in utero approaches 100%. See Will, The Down Syndrome Genocide, *Washington Post*, Mar. 15, 2018, p. A23, col. 1. Other European countries have similarly high rates, and the rate in the United States is approximately two-thirds. See *ibid.* (98% in Denmark, 90% in the United Kingdom, 77% in France, and 67% in the United States); see also Natoli, Ackerman, McDermott, & Edwards, Prenatal Diagnosis of Down Syndrome: A Systematic Review of Termination Rates (1995–2011), 32 *Prenatal Diagnosis* 142 (2012) (reviewing U. S. studies).

In Asia, widespread sex-selective abortions have led to as many as 160 million “missing” women—more than the entire female population of the United States. See M. Hvistendahl, Unnatural Selection: Choosing Boys Over Girls, and the Consequences of a World Full of Men 5–6 (2011); see also Kalantry, How To Fix India’s Sex-Selection Problem, *N. Y. Times*, Int’l ed., July 28, 2017, p. 9 (“Over the course of several decades, 300,000 to 700,000 female fetuses were selectively aborted in India each year. Today there are about 50 million more men than women in the country”). And recent evidence suggests that sex-selective abortions of girls are common among certain populations in the United States as well. See Almond & Sun, Son-Biased Sex Ratios in 2010 U. S. Census and 2011–2013 U. S. Natality Data, 176 *Soc. Sci. & Med.* 21 (2017) (concluding that Chinese and Asian-Indian families in the United States “show a tendency to sex-select boys”); Almond & Edlund, Son-Biased Sex Ratios in the 2000 United States Census, 105 *Proc. Nat. Acad. of Sci.* 5681 (2008) (similar).

Eight decades after Sanger’s “Negro Project,” abortion in the United States is also marked by a considerable racial

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disparity. The reported nationwide abortion ratio—the number of abortions per 1,000 live births—among black women is nearly 3.5 times the ratio for white women. Dept. of Health and Human Servs., Centers for Disease Control and Prevention, T. Jatlaoui et al., Abortion Surveillance—United States, 2015, 67 Morbidity and Mortality Weekly Report, Surveillance Summaries, No. SS-13, p. 35 (Nov. 23, 2018) (Table 13); see also Brief for Restoration Project et al. as *Amici Curiae* 5–6. And there are areas of New York City in which black children are more likely to be aborted than they are to be born alive—and are up to eight times more likely to be aborted than white children in the same area. See N. Y. Dept. of Health, Table 23: Induced Abortion and Abortion Ratios by Race/Ethnicity and Resident County New York State–2016, https://www.health.ny.gov/statistics/vital_statistics/2016/table23.htm. Whatever the reasons for these disparities, they suggest that, insofar as abortion is viewed as a method of “family planning,” black people do indeed “tak[e] the brunt of the ‘planning.’” Dempsey, *supra*, at 82.

Some believe that the United States is already experiencing the eugenic effects of abortion. According to one economist, “*Roe v. Wade* help[ed] trigger, a generation later, the greatest crime drop in recorded history.” S. Levitt & S. Dubner, *Freakonomics* 6 (2005); see *id.*, at 136–144 (elaborating on this theory). On this view, “it turns out that not all children are born equal” in terms of criminal propensity. *Id.*, at 6. And legalized abortion meant that the children of “poor, unmarried, and teenage mothers” who were “much more likely than average to become criminals” “weren’t being born.” *Ibid.* (emphasis deleted). Whether accurate or not, these observations echo the views articulated by the eugenicists and by Sanger decades earlier: “Birth Control of itself . . . will make a better race” and tend “toward the elimination of the unfit.” Racial Betterment 11–12.

III

It was against this background that Indiana’s Legislature, on the 100th anniversary of its 1907 sterilization law, adopted a concurrent resolution formally “express[ing] its regret over Indiana’s role in the eugenics movement in this country and the injustices done under eugenic laws.” Ind. S. Res. 91, 115th Gen. Assembly 1st Sess., § 1 (2007); see Brief for Pro-Life Legal Defense Fund et al. as *Amici Curiae* 6–8. Recognizing that laws implementing eugenic goals “targeted the most vulnerable among us, including the poor and racial minorities, . . . for the claimed purpose of public health and the good of the people,” Ind. S. Res. 91, at 2, the General Assembly “urge[d] the citizens of Indiana to become familiar with the history of the eugenics movement” and “repudiate the many laws passed in the name of eugenics and reject any such laws in the future,” *id.*, § 2.

In March 2016, the Indiana Legislature passed by wide margins the Sex-Selective and Disability Abortion Ban at issue here. Respondent Planned Parenthood promptly filed a lawsuit to block the law from going into effect, arguing that the Constitution categorically protects a woman’s right to abort her child based solely on the child’s race, sex, or disability. The District Court agreed, granting a preliminary injunction on the eve of the law’s effective date, followed by a permanent injunction. A panel of the Seventh Circuit affirmed. Pointing to *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U. S. 833 (1992), both the District Court and the Seventh Circuit held that this Court had already decided the matter: “*Casey*’s holding that a woman has the right to terminate her pregnancy prior to viability is categorical.” *Planned Parenthood of Ind. and Ky., Inc. v. Commissioner of Ind. State Dept. of Health*, 888 F. 3d 300, 305 (CA7 2018); see *Planned Parenthood of Ind. and Ky., Inc. v. Commissioner, Ind. State Dept. of Health*, 265 F. Supp. 3d 859, 866 (SD Ind. 2017). In an opinion dissenting from the denial of rehearing

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en banc, Judge Easterbrook expressed skepticism as to this holding, explaining that “*Casey* did not consider the validity of an anti-eugenics law” and that judicial opinions, unlike statutes, “resolve only the situations presented for decision.” *Planned Parenthood of Ind. and Ky., Inc. v. Commissioner of Ind. State Dept. of Health*, 917 F. 3d 532, 536 (CA7 2018).

Judge Easterbrook was correct. Whatever else might be said about *Casey*, it did not decide whether the Constitution requires States to allow eugenic abortions. It addressed the constitutionality of only “five provisions of the Pennsylvania Abortion Control Act of 1982” that were said to burden the supposed constitutional right to an abortion. *Casey, supra*, at 844. None of those provisions prohibited abortions based solely on race, sex, or disability. In fact, the very first paragraph of the respondents’ brief in *Casey* made it clear to the Court that Pennsylvania’s prohibition on sex-selective abortions was “not [being] challenged,” Brief for Respondents in *Planned Parenthood of Southeastern Pa. v. Casey*, O. T. 1991, No. 91–744 etc., p. 4. In light of the Court’s denial of certiorari today, the constitutionality of other laws like Indiana’s thus remains an open question.

The Court’s decision to allow further percolation should not be interpreted as agreement with the decisions below. Enshrining a constitutional right to an abortion based solely on the race, sex, or disability of an unborn child, as Planned Parenthood advocates, would constitutionalize the views of the 20th-century eugenics movement. In other contexts, the Court has been zealous in vindicating the rights of people even potentially subjected to race, sex, and disability discrimination. Cf. *Pena-Rodriguez v. Colorado*, 580 U.S. 206, 223 (2017) (condemning “discrimination on the basis of race” as “‘odious in all aspects’”); *United States v. Virginia*, 518 U.S. 515, 532 (1996) (denouncing any “law or official policy [that] denies to women, simply because they are women, . . . equal opportunity to aspire, achieve, participate

in and contribute to society based on their individual talents and capacities”); *Tennessee v. Lane*, 541 U. S. 509, 522 (2004) (condemning “irrational disability discrimination”).

Although the Court declines to wade into these issues today, we cannot avoid them forever. Having created the constitutional right to an abortion, this Court is dutybound to address its scope. In that regard, it is easy to understand why the District Court and the Seventh Circuit looked to *Casey* to resolve a question it did not address. Where else could they turn? The Constitution itself is silent on abortion.

With these observations, I join the opinion of the Court.

JUSTICE GINSBURG, concurring in part and dissenting in part.

I agree with the Court’s disposition of the second question presented. As to the first question, I would not summarily reverse a judgment when application of the proper standard would likely yield restoration of the judgment. In the District Court and on appeal to the Seventh Circuit, Planned Parenthood of Indiana and Kentucky urged that Indiana’s law on the disposition of fetal remains should not pass even rational-basis review.¹ But as Chief Judge Wood observed, “rational basis” is not the proper review standard. *Planned Parenthood of Ind. and Ky., Inc. v. Commissioner of Ind. State Dept. of Health*, 917 F. 3d 532, 534 (CA7 2018) (opinion concurring in denial of rehearing en banc).

¹One may “wonder how, if respect for the humanity of fetal remains after a miscarriage or abortion is the [S]tate’s goal, [Indiana’s] statute rationally achieves that goal when it simultaneously allows any form of disposal whatsoever if the [woman] elects to handle the remains herself,” *Planned Parenthood of Ind. and Ky., Inc. v. Commissioner of Ind. State Dept. of Health*, 917 F. 3d 532, 534 (CA7 2018) (Wood, C. J., concurring in denial of rehearing en banc), “and continues to allow for mass cremation of fetuses,” *Planned Parenthood of Ind. and Ky., Inc. v. Commissioner of Ind. State Dept. of Health*, 888 F. 3d 300, 309 (CA7 2018) (case below).

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This case implicates “the right of [a] woman to choose to have an abortion before viability and to obtain it without undue interference from the State,” *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U. S. 833, 846 (1992), so heightened review is in order, *Whole Woman’s Health v. Hellerstedt*, 579 U. S. 582, 607 (2016).

It is “a waste of th[e] [C]ourt’s resources” to take up a case simply to say we are bound by a party’s “strategic litigation choice” to invoke rational-basis review alone, but “everything might be different” under the close review instructed by the Court’s precedent. 917 F. 3d, at 534, 535 (opinion of Wood, C. J.). I would therefore deny Indiana’s petition in its entirety.²

²JUSTICE THOMAS’ footnote, *ante*, at 1, n. 1, displays more heat than light. The note overlooks many things: “This Court reviews *judgments*, not statements in opinions,” *California v. Rooney*, 483 U. S. 307, 311 (1987) (*per curiam*) (quoting *Black v. Cutter Laboratories*, 351 U. S. 292, 297 (1956); emphasis added); a woman who exercises her constitutionally protected right to terminate a pregnancy is not a “mother”; the cost of, and trauma potentially induced by, a post-procedure requirement may well constitute an undue burden, 917 F. 3d, at 534–535 (opinion of Wood, C. J.); under the rational-basis standard applied below, *Planned Parenthood of Indiana and Kentucky* had no need to marshal evidence that Indiana’s law posed an undue burden, *id.*, at 535.

Syllabus

MONT *v.* UNITED STATESCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE SIXTH CIRCUIT

No. 17–8995. Argued February 26, 2019—Decided June 3, 2019

Petitioner Mont was released from federal prison in 2012 and began a 5-year term of supervised release that was scheduled to end on March 6, 2017. On June 1, 2016, he was arrested on state drug-trafficking charges and has been in state custody since that time. In October 2016, Mont pleaded guilty to state charges. He then admitted in a filing in Federal District Court that he violated his supervised-release conditions by virtue of the new state convictions, and he requested a hearing. The District Court scheduled a hearing for November, but later rescheduled it several times to allow the state court to first sentence Mont. On March 21, 2017, Mont was sentenced to six years' imprisonment, and his roughly 10 months of pretrial custody were credited as time served. On March 30, the District Court issued a warrant for Mont and set a supervised-release hearing. Mont then challenged the District Court's jurisdiction on the ground that his supervised release had been set to expire on March 6. The District Court ruled that it had jurisdiction under 18 U. S. C. § 3583(i) based on a summons it had issued in November 2016. It then revoked Mont's supervised release and ordered him to serve an additional 42 months' imprisonment to run consecutive to his state sentence. The Sixth Circuit affirmed on alternative grounds, holding that Mont's supervised-release period was tolled under § 3624(e), which provides that a "term of supervised release does not run during any period in which the person is imprisoned in connection with a conviction for a . . . crime unless the imprisonment is for a period of less than 30 consecutive days." Because the roughly 10 months of pretrial custody was "in connection with [Mont's] conviction" and therefore tolled the period of supervised release, the court concluded that there was ample time left on Mont's term of supervised release when the March warrant issued.

Held: Pretrial detention later credited as time served for a new conviction is "imprison[ment] in connection with a conviction" and thus tolls the supervised-release term under § 3624(e), even if the court must make the tolling calculation after learning whether the time will be credited. Pp. 521–528.

(a) The text of § 3624(e) compels this reading. First, dictionary definitions of the term "imprison," both now and at the time Congress

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created supervised release, may very well encompass pretrial detention, and Mont has not pressed any serious argument to the contrary. Second, the phrase “in connection with a conviction” encompasses a period of pretrial detention for which a defendant receives credit against the sentence ultimately imposed. “In connection with” can bear a “broad interpretation,” *Merrill Lynch, Pierce, Fenner & Smith Inc. v. Dabit*, 547 U.S. 71, 85, but the outer bounds need not be determined here, as pretrial incarceration is directly tied to the conviction when it is credited toward the new sentence. This reading is buttressed by the fact that Congress, like most States, instructs courts calculating a term of imprisonment to credit pretrial detention as time served on a subsequent conviction. See §3585(b)(1). Third, the text undeniably requires courts to retrospectively calculate whether a period of pretrial detention should toll a period of supervised release by including the 30-day minimum. The statute does not require courts to make a tolling determination as soon as a defendant is arrested on new charges or to continually reassess the tolling calculation throughout the pretrial-detention period. Its 30-day minimum-incarceration threshold contemplates the opposite. Pp. 521–523.

(b) The statutory context also supports this reading. First, §3624(e) provides that supervised release “runs concurrently” with “probation or supervised release or parole for another offense,” but excludes periods of “imprison[ment]” served “in connection with a conviction.” This juxtaposition reinforces the fact that prison time is “not interchangeable” with supervised release, *United States v. Johnson*, 529 U.S. 53, 59, and furthers the statutory design of “successful[ly] transition[ing]” a defendant from “prison to liberty,” *Johnson v. United States*, 529 U.S. 694, 708–709. Second, it would be an exceedingly odd construction of the statute to give a defendant the windfall of satisfying a new sentence of imprisonment and an old sentence of supervised release with the same period of pretrial detention. Supervised release is a form of punishment prescribed along with a term of imprisonment as part of the same sentence. And Congress denies defendants credit for time served if the detention time has already “been credited against another sentence.” §3585(b). Pp. 523–525.

(c) Mont’s argument that the statute’s present tense forbids any backward looking tolling analysis confuses the rule with a court’s analysis of whether that rule was satisfied. The present-tense phrasing does not address whether a judge must be able to make a supervised-release determination at any given time. Moreover, any uncertainty about whether supervised release is tolled matters little from either the court’s or the defendant’s perspective. As for the court, the defendant need not be supervised when he is held in custody; as for the defendant,

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there is nothing unfair about not knowing during pretrial detention whether he is also under supervised release. Pp. 525–527.

723 Fed. Appx. 325, affirmed.

THOMAS, J., delivered the opinion of the Court, in which ROBERTS, C. J., and GINSBURG, ALITO, and KAVANAUGH, JJ., joined. SOTOMAYOR, J., filed a dissenting opinion, in which BREYER, KAGAN, and GORSUCH, JJ., joined, *post*, p. 528.

Vanessa F. Malone argued the cause for petitioner. With her on the briefs was *Stephen Newman*.

Jenny C. Ellickson argued the cause for the United States. With her on the brief were *Solicitor General Francisco*, *Assistant Attorney General Benczkowski*, *Eric J. Feigin*, and *Joshua K. Handell*.

JUSTICE THOMAS delivered the opinion of the Court.

This case requires the Court to decide whether a convicted criminal’s period of supervised release is tolled—in effect, paused—during his pretrial detention for a new criminal offense. Specifically, the question is whether that pretrial detention qualifies as “imprison[ment] in connection with a conviction for a Federal, State, or local crime.” 18 U. S. C. § 3624(e). Given the text and statutory context of § 3624(e), we conclude that if the court’s later imposed sentence credits the period of pretrial detention as time served for the new offense, then the pretrial detention also tolls the supervised-release period.

I

A

In 2004, petitioner Jason Mont began distributing cocaine and crack cocaine in northern Ohio. After substantial drug sales to a confidential informant and a search of his home that uncovered handguns and \$2,700 in cash, a federal grand jury indicted Mont for multiple drug and firearm offenses. He later pleaded guilty to conspiring to possess with intent to distribute cocaine and to possessing a firearm and ammu-

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dition after having been convicted of a felony. See 18 U.S.C. § 922(g)(1) (2000 ed.); 21 U.S.C. §§ 841(a)(1), 846 (2000 ed.).

The District Court sentenced Mont to 120 months' imprisonment, later reduced to 84 months, to be followed by 5 years of supervised release. Mont was released from federal prison on March 6, 2012, and his supervised release was "slated to end on March 6, 2017." 723 Fed. Appx. 325, 326 (CA6 2018); see 18 U.S.C. § 3624(e) (a "term of supervised release commences on the day the person is released from imprisonment"). Among other standard conditions, Mont's supervised release required that he "not commit another federal, state, or local crime," "not illegally possess a controlled substance," and "refrain from any unlawful use of a controlled substance." Judgment in No. 4:05-cr-00229 (ND Ohio), Doc. 37, p. 111.

Mont did not succeed on supervised release. In March 2015, an Ohio grand jury charged him with two counts of marijuana trafficking in a sealed indictment. Mont was arrested and released on bond while awaiting trial for those charges. Things only got worse from there. In October 2015, Mont tested positive for cocaine and oxycodone during a routine drug test conducted as part of his supervised release. But Mont's probation officer did not immediately report these violations to the District Court; instead, the officer referred him for additional substance-abuse counseling. Mont proceeded to test positive in five more random drug tests over the next few months. He also used an "unknown" liquid to try to pass two subsequent drug tests." 723 Fed. Appx., at 326. In January 2016, Mont's probation officer finally reported the supervised-release violations, including Mont's use of drugs and attempts to adulterate his urine samples. The violation report also informed the District Court about the pending state charges and the anticipated trial date of March 2016 in state court. The District Court declined to issue an arrest warrant at that time, but it

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asked to “‘be notified of the resolution of the state charges.’” *Ibid.*; see 18 U.S.C. §3606 (explaining that the District Court “may issue a warrant for the arrest” of the releasee for “violation of a condition of release”).

On June 1, 2016, approximately four years and three months into his 5-year term of supervised release, Mont was arrested again on new state charges of trafficking in cocaine, and his bond was revoked on the earlier marijuana-trafficking charges. He was incarcerated in the Mahoning County Jail and has remained in state custody since that date. Mont’s probation officer filed a report with the District Court stating that he had violated the terms of his release based on these new state offenses. The officer later advised the court that because Mont’s incarceration rendered him unavailable for supervision, the Probation Office was “toll[ing]” his federal supervision. App. 21. The officer promised to keep the court apprised of the pending state charges and stated that, if Mont were convicted, the officer would ask the court to take action at that time.

In October 2016, Mont entered into plea agreements with state prosecutors in exchange for a predetermined 6-year sentence. The state trial court accepted Mont’s guilty pleas on October 6, 2016, and set the cases for sentencing in December 2016.

Three weeks later, Mont filed a written admission in the District Court “acknowledg[ing]” that he had violated his conditions of supervised release “by virtue of his conviction following guilty pleas to certain felony offenses” in state court. Record in No. 4:05–cr–00229 (ND Ohio), Doc. 92, p. 419. Even though he had yet to be sentenced for the state offenses, Mont sought a hearing on the supervised-release violations at the court’s “earliest convenience.” *Ibid.* The court initially scheduled a hearing for November 9, 2016, but then, over Mont’s objection, rescheduled the hearing several times to allow for “the conclusion of the State sentencing.” App. 8; 723 Fed. Appx., at 327.

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On March 21, 2017, Mont was sentenced in state court to six years' imprisonment. The judge "credited the roughly ten months that Mont had already been incarcerated pending a disposition as time served." *Id.*, at 327. The District Court issued a warrant on March 30, 2017, and ultimately set a supervised-release hearing for June 28, 2017.

B

Two days before that hearing, Mont challenged the jurisdiction of the District Court based on the fact that his supervised release had initially been set to expire on March 6, 2017. The court concluded that it had authority to supervise Mont, revoked his supervised release, and ordered him to serve an additional 42 months' imprisonment to run consecutive to his state sentence. The court held that it retained jurisdiction to revoke the release under 18 U. S. C. § 3583(i), which preserves, for a "reasonably necessary" period of time, the court's power to adjudicate violations and revoke a term of supervised release after the term has expired "if, before its expiration, a warrant or summons has been issued on the basis of an allegation of such a violation." The court further held that it retained authority to revoke Mont's term of supervised release because it gave "notice by way of a summons" on November 1, 2016, when it originally scheduled the hearing. App. 22. The court also concluded that the delay between the guilty pleas in October 2016 and the hearing date in June 2017 was "reasonably necessary." *Id.*, at 24.

The Sixth Circuit affirmed on alternative grounds. The court could find no evidence in the record that a summons had issued within the meaning of § 3583(i). 723 Fed. Appx., at 329, n. 5. But because Circuit precedent provided an alternative basis for affirmance, the court did not further consider the Government's argument that the District Court retained jurisdiction under § 3583(i). Instead, the court held that Mont's supervised-release period was tolled while he was held in pretrial detention in state custody under § 3624(e), which provides:

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“Supervision After Release.— . . . The term of supervised release commences on the day the person is released from imprisonment and runs concurrently with any Federal, State, or local term of probation or supervised release or parole for another offense to which the person is subject or becomes subject during the term of supervised release. A term of supervised release does not run during any period in which the person is *imprisoned in connection with a conviction* for a Federal, State, or local crime unless the imprisonment is for a period of less than 30 consecutive days.” (Emphasis added.)

Relying on Circuit precedent, the Sixth Circuit explained that when a defendant is convicted of the offense for which he was held in pretrial detention for longer than 30 days and “his pretrial detention is credited as time served toward his sentence, then the pretrial detention is “in connection with” a conviction and tolls the period of supervised release under § 3624.’” *Id.*, at 328 (quoting *United States v. Goins*, 516 F. 3d 416, 417 (2008)). Because Mont’s term of supervised release had been tolled between June 2016 and March 2017, there was ample time left on his supervised-release term when the warrant issued on March 30, 2017.

The Courts of Appeals disagree on whether § 3624(e) tolls supervised release for periods of pretrial detention lasting longer than 30 days when that incarceration is later credited as time served on a conviction. Compare *United States v. Ide*, 624 F. 3d 666, 667 (CA4 2010) (supervised-release period tolls); *United States v. Molina-Gazca*, 571 F. 3d 470, 474 (CA5 2009) (same); *United States v. Johnson*, 581 F. 3d 1310, 1312–1313 (CA11 2009) (same); *Goins*, *supra*, at 417 (same), with *United States v. Marsh*, 829 F. 3d 705, 709 (CAD9 2016) (supervised-release period does not toll); *United States v. Morales-Alejo*, 193 F. 3d 1102, 1106 (CA9 1999) (same). We granted certiorari to resolve this split of authority. 586 U. S. 985 (2018).

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II

We hold that pretrial detention later credited as time served for a new conviction is “imprison[ment] in connection with a conviction” and thus tolls the supervised-release term under § 3624(e). This is so even if the court must make the tolling calculation after learning whether the time will be credited. In our view, this reading is compelled by the text and statutory context of § 3624(e).

A

Section 3624(e) provides for tolling when a person “is imprisoned in connection with a conviction.” This phrase, sensibly read, includes pretrial detention credited toward another sentence for a new conviction.

First, the definition of “is imprisoned” may well include pretrial detention. Both now and at the time Congress created supervised release, see § 212(a)(2), 98 Stat. 1999–2000, the term “imprison” has meant “[t]o put in a prison,” “to incarcerate,” “[t]o confine a person, or restrain his liberty, in any way.” Black’s Law Dictionary 681 (5th ed. 1979); 5 Oxford English Dictionary 113 (1933); accord, Black’s Law Dictionary 875 (10th ed. 2014). These definitions encompass pretrial detention, and, despite the dissent’s reliance on a narrower definition, *post*, at 531–534 (opinion of SOTOMAYOR, J.), even Mont has not pressed any serious argument to the contrary. As the Sixth Circuit previously recognized, if imprisonment referred only to “confinement that is the result of a penalty or sentence, then the phrase ‘in connection with a conviction’ [would] becom[e] entirely superfluous.” *Goins*, *supra*, at 421.

Second, the phrase “in connection with a conviction” encompasses a period of pretrial detention for which a defendant receives credit against the sentence ultimately imposed. The Court has often recognized that “in connection with” can bear a “broad interpretation.” *Merrill Lynch, Pierce, Fenner & Smith Inc. v. Dabit*, 547 U. S. 71, 85 (2006)

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(interpreting “in connection with the purchase or sale” broadly in the context of § 10(b) of the Securities Exchange Act of 1934, 15 U.S.C. § 78j(b)); see, *e.g.*, *United States v. American Union Transport, Inc.*, 327 U.S. 437, 443 (1946) (describing the phrase “in connection with” in the Shipping Act, 1916, 39 Stat. 728, as “broad and general”). The Court has also recognized that “‘in connection with’ is essentially indeterminate because connections, like relations, stop nowhere.” *Maracich v. Spears*, 570 U.S. 48, 59 (2013) (quotation altered). Here, however, we need not consider the outer bounds of the term “in connection with,” as pretrial incarceration is *directly* tied to the conviction when it is credited toward the new sentence. The judgment of the state court stated as much, crediting the pretrial detention that Mont served while awaiting trial and sentencing for his crimes against his ultimate sentence for those same crimes.

This reading of “imprison[ment] in connection with a conviction” is buttressed by the fact that Congress, like most States, instructs courts calculating a term of imprisonment to credit pretrial detention as time served on a subsequent conviction. See 18 U.S.C. § 3585(b)(1); Tr. of Oral Arg. 54 (statement of the Assistant Solicitor General representing that the same rule applies in 45 States and the District of Columbia). Thus, it makes sense that the phrase “imprison[ment] in connection with a conviction” would include pretrial detention later credited as time served, especially since both provisions were passed as part of the Sentencing Reform Act of 1984. See § 212(a)(2), 98 Stat. 2008–2009. If Congress intended a narrower interpretation, it could have easily used narrower language, such as “*after* a conviction” or “*following* a conviction.” See, *e.g.*, Bail Reform Act of 1984, § 209(d)(4), 98 Stat. 1987 (adding Federal Rule of Criminal Procedure 46(h), allowing courts to direct forfeiture of property “*after* conviction of the offense charged” (emphasis added)). We cannot override Congress’ choice to employ the more capacious phrase “in connection with.”

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Third, the text undeniably requires courts to retrospectively calculate whether a period of pretrial detention should toll a period of supervised release. Whereas § 3624(e) instructs courts precisely when the supervised-release clock begins—“on the day the person is released”—the statute does not require courts to make a tolling determination as soon as a defendant is arrested on new charges or to continually reassess the tolling calculation throughout the period of his pretrial detention. Congress contemplated the opposite by including a minimum-incarceration threshold: tolling occurs “unless the imprisonment is for a period of less than 30 consecutive days.” § 3624(e). This calculation must be made after either release from custody or entry of judgment; there is no way for a court to know on day 5 of a defendant’s pretrial detention whether the period of custody will extend beyond 30 days. Thus, at least some uncertainty as to whether supervised release is tolled is built into § 3624(e) by legislative design. This fact confirms that courts should make the tolling calculation upon the defendant’s release from custody or upon entry of judgment.

B

The statutory context also supports our reading. Supervised release is “a form of postconfinement monitoring” that permits a defendant a kind of conditional liberty by allowing him to serve part of his sentence outside of prison. *Johnson v. United States*, 529 U. S. 694, 697 (2000). Recognizing that Congress provided for supervised release to facilitate a “transition to community life,” we have declined to offset a term of supervised release by the amount of excess time a defendant spent in prison after two of his convictions were declared invalid. *United States v. Johnson*, 529 U. S. 53, 59–60 (2000). As we explained: “The objectives of supervised release would be unfulfilled if excess prison time were to offset and reduce terms of supervised release” because “[s]upervised release has no statutory function